TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
APRIL 30, 2018
MINUTES

Present: Joseph Belton, Chair, Barry Wolff, Bobby Carrier, Stephen Wood, Stephen Duke, Glyn Cowden.
Absent: David Rubin (excused)
Staff: Michael Robertson, Kent Prause, Eddie Bernard, Julia Copeland, Lynnette Lynes
Also: Claude Tackett, attorney for the Board

Mr. Belton called the meeting to order at 6:09 pm and reviewed the procedures with the public.

1. Approval of Minutes--February 26, 2018 and March 26, 2018

- *Mr. Wolff moved for approval of the minutes. Mr. Carrier seconded the motion. All in favor.*

- *Mr. Wolf moved for approval of the agenda. Mr. Duke seconded the motion. All in favor.*

Mr. Belton administered the oath to those speaking.

2. Public Comment & General Correspondence

There being no comments, Mr. Belton continued with the agenda.

3. Business

A. Request for Rehearing, Case V-1-18, 361 Cooper River Drive, TMS 514-0000-406, Appeal from the strict application of Eastport Village Planned Development Ordinance 02069, R-02-03 and §156.007 DEFINITIONS, BUILDING HEIGHT, and §156.102 HEIGHT AND SIZE OF BUILDINGS/STRUCTURES to allow a rooftop pergola above the 80 foot height limit. Correspondence

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Belton noted that the applicant was not present and asked what the procedure would be. Mr. Robertson answered that the Board could make a

decision in absentia, could defer the request to the end of the meeting, or defer the request to the next meeting.

Mr. Wolff stated that his understanding is that there was a letter from the homeowner's association (HOA) and suggested that this would not be sufficient evidence to render a different decision.

Mr. Duke moved for deferral to the end of the meeting. Mr. Carrier seconded the motion. All in favor.

B. Case V-1-18, 361 Cooper River Drive, TMS 514-00-00-406, If Rehearing Request is Approved in Item 1, Appeal from the strict application of Eastport Village Planned Development Ordinance 02069, R-02-03 and §156.007 DEFINITIONS, BUILDING HEIGHT, and §156.102 HEIGHT AND SIZE OF BUILDINGS/STRUCTURES to allow a rooftop pergola above the 80 foot height limit. Correspondence

Mr. Wolff moved to defer this issue to the end of the meeting. Mr. Duke seconded the motion. All in favor.

C. Case A-2-18, Ferry Wharf II, Harry Hallman Blvd., TMS 517-00-00-018, 126, and 245; Appeal of the Determination of the Zoning Administrator dated February 21, 2018, relating to the Master Plan Approval for the Bridgeside II Planned Development. The applicant contends that the Zoning Administrator erroneously interpreted Ordinance No. 12034 to allow only 73 residential units on Ferry Wharf's property and to prohibit the Town of Mount Pleasant Design Review Board from approving the requested bonus density for Ferry Wharf's property. Record of Zoning Official

Mr. Chuck Baker asked for an additional five minutes for his presentation. Mr. Belton answered that the additional five minutes is granted.

Mr. Carrier recused himself due to a conflict.

Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Prause reviewed his comments with the Board (attachment 2).

Mr. Cowden asked if the project was originally approved with 73 residential units. Mr. Prause answered in the affirmative. Mr. Cowden asked if Town Council has purview to increase the number of units. Mr. Prause answered in the affirmative and stated that 573 units are allowed for the entire development.

Mr. Chuck Baker, representative for applicant, reviewed the request with the Board. He distributed a copy of the ordinances for the Board to review (attachment 3). He contends that the bonus density is under the purview of the DRB as outlined in the planned development (PD) ordinance.

Mr. Belton asked for clarification on Mr. Baker's estoppel argument. Mr. Baker referred to a letter under tab 3 of his exhibit from Mr. Prause dated March 30, 2017 and stated that it addresses the stipulations for bonus density. He referred to Ms. Farrell's email dated January 23, 2108 (tab 5) outlined the issue of bonus density. He stated that his position is that as stated in the ordinance, DRB has purview over the bonus density.

Mr. Wolff referred to the map submitted by Mr. Baker and asked if there would be an increase of 143 units for the project that was reviewed by DRB, with 78 additional units being the bonus density. Mr. Wolff asked where the bonus density would be located. Mr. Baker answered that this would be determined by DRB and the reason for the appeal. He stated that this issue is that DRB did not rule on the bonus density units as the Zoning Administrator determined that the bonus density was a zoning standard. He stated that their project is providing most of the requirements needed to obtain the bonus density but DRB did not make a determination on providing the additional density.

Mr. Belton asked if the different districts have concrete boundaries. Mr. Baker answered in the negative and stated that the reason the boundaries were not delineated on the map to allow flexibility and ease of identification, not to assign density. Mr. Belton referred to exhibit B, page 2 and stated that the districts are noted in the text and includes specifications for the different districts. Mr. James Wilson, representative for the applicant, answered that there are only a few times the districts are referenced in the ordinance. He suggested that the ordinance does not stipulate that density is limited to a particular district. Mr. Belton stated that the districts are outlined with detailed characteristics outlined in the ordinance. Mr. Belton asked the reason for amendments if it

could be approved by DRB. Mr. Wilson answered that that there is a specific requirement in the ordinance. He stated that the other amendment referred to a request of increase in height and a change to the critical line buffer. He stated that there is no change in the ordinance that would mean that DRB could not make a decision on the bonus density.

Mr. Wood asked if the applicant is the owner of the waterfront district. Mr. Baker answered that there are two owners. Mr. Wood asked if the other property owner is opposed to this request. Mr. Baker answered that he is not sure.

- *Mr. Wolff moved to convene into executive session for legal advice. Mr. Wood seconded the motion. All in favor with Mr. Carrier abstaining.*

The Board convened into executive session at 7:01 pm and reconvened at 7:16 pm. No action taken while in executive session.

Mr. Wolff asked if the applicant's position is that after meeting the requirements for the bonus density, the bonus density can be applied to anywhere within the entire development. Mr. Baker answered in the affirmative. Mr. Wolff asked what was required for the bonus density. Mr.. Bakr answered that they are providing over 50% of the required open space, a parking garage, a hotel, office space, etc. He stated that the requirements are outlined in exhibit B of the ordinance.

- *Mr. Wood moved to uphold the Zoning Administrator's decision as the conceptual plan is the zoning district map and pursuant to state law, any changes to the zoning district map must be approved by Town Council; DRB does not have purview to make changes to the zoning map. Mr. Cowden seconded the motion. All in favor with Mr. Carrier abstaining.*

D. Case A-1-18, 43 Joggling St., TMS 535-06-00-759, Appeal of Administrative decision regarding §156.224 (A). Applicant contends that mitigation is not required for removal of a tree that poses a hazard to a habitable structure, due to disease, or to damage not caused by the property owner. Record of Zoning Official

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Eddie Bernard, staff, reviewed letters received with the Board. He stated that based on the arborist report submitted by the applicant, and as a certified arborist, the tree was determined to be in fair condition.

Mr. Ben Spell, 43 Joggling St, reviewed the request with the Board. He stated that the tree was damaged during Hurricane Irma and referred to section 156.224 "no mitigation required for removal of a tree that poses a hazard…". He stated that the ordinance does not stipulate that it must be an immediate threat or hazard. He distributed pictures of the tree for the Board to review (attachment 4).

There being no comments, Mr. Belton closed public comment.

Mr. Belton stated that he is sensitive to water oaks as he had one on his property that caused damage to his home. He suggested that he is supportive of the appellant.

- *Mr. Cowden moved for approval of the request based on the findings that the tree needs to be removed. Mr. Duke seconded the motion. Motion passed on a 5 to 1 vote with Mr. Carrier, Mr. Cowden, Mr. Belton, Mr. Duke, and Mr. Wood in favor; Mr. Wolff opposed.*

E. Case A-3-18, 1123 Chuck Dawley Blvd, TMS 532-09-00-093, Appeal of Administrative Decision denying applicant's request for an extension of its vested right for Mount Pleasant Board of Zoning Appeals Special Exception Case S-02-15, to allow a one year extension of Special Exception Approval for a Telecommunications Tower. Record of Zoning Official

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Prause reviewed the Zoning Administrator's position with the Board (attachment 5). He referred to his letter outlining the facts and stated that the vesting period begins upon approval of the Board. He stated that per state law the extension must be made prior to the expiration of the extension period.

Mr. Jason Smith and Mr. Jonathan Yates, representative for the applicant, reviewed the request with the Board. He stated that the enabling Act is the

controlling section and referred to section 1520. He suggested that the mailing date of the final orders is the final approval date and stated that they filed before the end of the filing date. He contended that the enabling act allows for filing "at the end of the vesting period"; the ordinance states must be filed prior to the end of the vesting period. He stated that the Enabling Act is the controlling document.

There being no comments, Mr. Belton closed public comment.

Mr. Wolff asked if a variance is granted, can a permit be issued the next day for the work that has been approved by BOZA. Mr. Prause answered that state law has an appeal provision of thirty days from actual knowledge of the decision for any person with standing. He stated that a permit could be requested at their own risk because of the potential of appeal.

Mr. Yates disagreed and stated that the enabling legislation stipulates that the last action taken by the Board, which is when the date the order is mailed.

Mr. Belton suggested that typically the rules of procedure are very clear on when the "clock starts". He suggested that the mailing date is typically a date that is used for the timeframe to start. He suggested that there is a hardship with when the timeframe starts as it is not clear in the ordinance. He suggested that the Board has been consistent in using the mailing date as the start date. He suggested that there would be no harm in extending vesting period as requested based on the mailing date as the hearing was previously held and a decision made by the Board.

Mr. Wolff asked if there is harm in the difference between seven days. Mr. Belton answered that it would be a matter of law; the issue is that the ordinance is not clear.

▶ *Mr. Cowden moved for approval of the applicant's request based on the findings that this has been heard by the Board, and that the mailing date would be considered the final action of the Board. Mr. Duke seconded the motion. Motion passed on a 5 to 1 vote with Mr. Wolff, Mr. Carrier, Mr. Cowden, Mr. Belton, and Mr. Duke in favor; Mr. Wood opposed.*

F. Case V-12-18, 536 Belle Station, TMS 556-00-00-384, Appeal from the strict application of §156.171 SCHEDULE OF OFF-STREET PARKING SPACE REQUIREMENTS to allow an outdoor patio in a shopping center without providing additional parking spaces.

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

- *Mr. Wolff moved for deferral to the end of the meeting. Mr. Carrier seconded the motion. All in favor.*

G. Case V-13-18, 851 Woodgreen Circle, TMS 562-01-00-112, Appeal from the strict application of §156.007 and 156.303 to allow existing 1 foot front yard encroachment and application of the setbacks as shown on site plan submittal.

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Ruben Comacho, 851 Woodgreen Circle, reviewed the request with the Board.

There being no comment, Mr. Belton closed public comment.

Mr. Wolff asked if the property would also be under the 50% rule. Mr. Robertson answered in the negative and stated that the property has a non-conforming setback.

- *Mr. Wolff moved for approval of the request based on the findings included in the staff report, the lot is odd-shaped and would prohibit any improvements to the property and would not be a detriment to the neighbors. Mr. Duke seconded the motion. All in favor.*

H. Case V-14-18, 405 King Street, TMS 532-05-00-086, Appeal from the strict application of §156.303(C)(1), 156.131(A)(3)(4); 156.110, 156.111(A)(1) so that a zoning permit may be issued to allow use of the property to request reinstatement of variance (V-06-15) to allow a 4.2-foot front setback and a 5-foot side setback (on right side) to build a 2.5 story Principal House on improved foundations at the existing single story house foundation built in 1920; and to allow 5-foot rear and left side setbacks for the existing ADU

so that the Principal House can be completed with the ADU serving as temporary principal structure for residing in during construction.

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Frank Venning, 405 King Street, reviewed the request with the Board.

There being no comments, Mr. Belton closed public comment.

Mr. Wolff asked about lot coverage. Mr. Venning answered that the lot coverage is 36%.

Mr. Belton asked if there are any changes from the previous approval. Mr. Venning answered in the negative.

- *Mr. Carrier moved for approval of the request based on the findings that the property met all criteria, extraordinary conditions with the lot size and termite infestation, would prohibit the use of the property if not approved, and would not be a detriment to the neighborhood. Mr. Wolff seconded the motion. All in favor.*

I. Case V-15-18, 116 Beach Street, TMS 517-15-00-140, Appeal from the strict application of §156.106 (B) to allow a 5 feet 4 1/8 inches x 1 foot 2 ¼ inches encroachment of cantilevered infinity pool catch basin into 30-foot impervious setback.

Mr. Wood recused himself due to a conflict of interest.

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Phil Clarke, representative for the owner, reviewed the request with the Board. He stated that the neighbors submitted a letter of approval of the request (attachment 5). He showed a visual of the triangular encroachment for the Board.

There being no comments, Mr. Belton closed the public comment.

Mr. Carrier stated that there are more and more issues with pool construction and is becoming a recurring issue.

Mr. Wolff suggested that this is an honest mistake in calculating the overhang and is not a major construction issue.

- *Mr. Wolff moved for approval of the request based on the findings included in the staff report, and have met all criteria. Mr. Cowden seconded the motion.*

- *Mr. Belton moved to amend the motion to include that no justification was included with the application, but based on the testimony provided it was an honest mistake and a minor encroachment violation, with no intentional violation. Mr. Wolff seconded the amendment. Amendment passed on a 4 to 1 vote with Mr. Wolff, Mr. Cowden, Mr. Belton and Mr. Duke in favor; Mr. Carrier opposed with Mr. Wood abstaining.*

- *Mr. Belton called for a vote on the amended motion. Motion passed on a 4 to 1 vote with Mr. Wolff, Mr. Cowden, Mr. Belton, and Mr. Duke in favor; Mr. Carrier opposed with Mr. Wood abstaining.*

J. Case V-16-18, 1063 Meader Lane, TMS 517-12-00-054, Appeal from the strict application of §156.303 (C) and §156.132 (C)(2) to allow continuance of existing non-conforming setbacks of 9.5 feet and 13.7 feet after 50% improvement to structure.

- Mr. Robertson reviewed staff comments with the Board 9 (attachment 1).

Ms. Heather Bainbridge reviewed the request with the Board.

Mr. Carrier asked if the home had a pool. Ms. Bainbridge answered in the negative.

There being no comments, Mr. Belton closed public comment.

Mr. Carrier suggested that the application meets all criteria. He asked what renovations are proposed. Ms. Bainbridge answered that it would be replacement of flooring, etc.

Mr. Wood asked if the footprint would be expanded. Ms. Bainbridge answered in the negative and stated that there are no plans at this time.

- *Mr. Carrier moved for approval of the request based on the findings that it meets all criteria as there are extraordinary conditions with the year the house was built and configuration of the lot, if demolished it would prohibit the use of property, and there is no detriment to the community. Mr. Wolff seconded the motion. All in favor.*

K. Case V-17-18, 48 Robert Mills Circle, TMS 535-06-00-789. Appeal from the strict application of the l'On Planned Development Ordinance to designate lot as "rear yard" type allowing 60% lot coverage instead of "all yard" type allowing 40% lot coverage.

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Robert Dodds, representative for the applicant, reviewed the request with the Board. He stated that the request is to allow similar building on the lot as has been allowed within the subdivision and surrounding adjacent lots. He stated that due to significant health issues, they would like to mainly have a one-story home.

Mr. Chris Thompson, 44 Robert Mills Circle, expressed concern that the request does not meet the four criteria. He suggested that there are other lots in the area that are circular in nature. He suggested that the property is not extraordinary or exceptional as there are similar lot sizes. He suggested that there was no effort to move the house farther back on the lot and it is intrusive on the roadway. He suggested that other similar lots have the homes farther back on the lot. He suggested that the request would be a detriment to the neighborhood as it would not fit with the character of the streetscape. He expressed concern with site distance and access. He stated that there is currently a traffic issue around this curve and suggested that having the home close to the roadway would exacerbate this issue.

Ms. Claudia Bellars, 55 Robert Mills Circle, expressed concern with the home taking up the majority of the front portion of the lot. She expressed concern that there is a lack of guest parking and maintenance personnel parking. She

suggested that the lack of parking would be a safety issue, a hazard, and would be a detriment to the neighborhood. She asked that the request be denied.

Mr. Tim Bellars, 55 Robert Mills Circle, expressed concern that the alleyway being used for access to the garage. He expressed concern with the lack of sidewalks in this area and that pedestrians would have to walk in the street. He stated that there is significant pedestrian access along the alleyway to the mailboxes. He suggested that the properties adjacent to this property have significant setbacks. He expressed concern with the lack of guest parking. He expressed concern with the home causing a site distance issue. He suggested that because of the lack of parking on the property, there would be parking on the street that would cause a problem with emergency vehicles being able to access Robert Mills Circle. He suggested that the request should be denied.

Mr. Robertson reviewed correspondence received with the Board (attachment 6).

There being no further comments, Mr. Belton closed public comment.

Mr. Cowden asked if there is an HOA and ARB. Mr. Dodds answered in the affirmative. Mr. Cowden asked if the plans have been approved by the ARB. Mr. Dodds answered in the negative. Ms. Julie O'Connor stated that the plans would be submitted after the variance request is heard. Mr. Dodds stated that in regard to how close the house is to the street, a variance from the front setback is not being requested.

Mr. Wood asked if an elevator was considered so that the home footprint was smaller. Mr. Dodds answered that there would be an elevator to access the second story. Mr. Wood asked the square footage and if the pool is included in the lot coverage. Ms. O'Connor answered that it would be approximately 4,000 square feet. Mr. Robertson answered that the pool is considered in the percentage lot coverage. Mr. Wood asked the amount of lot coverage. Mr. Dodds answered that it is approximately 48.2% including the pool. He stated that they could build with allowing a 50% lot coverage.

Mr. Belton asked the definition of a rear yard building versus an all yard building. Mr. Dodds explained that the type of lot is based on the lot dimensions. The lot type would dictate where the main structure is placed on the lot. He clarified

that the only request is for the lot type designation; no other variances are being requested.

Mr. Wolff asked to see the site plan and asked the distance of the stairs to the property line. Ms. O'Connor answered that it is twelve feet. Mr. Robertson answered that the proposed site plan currently meets the build-to requirements for either lot type. Mr. Wolff asked how the build-to line is measured. Mr. Robertson answered that the build-to line is measured from the property line. Mr. Wolff asked where the parking is located. Mr. Robertson answered that they show three parking spaces and showed the parking on the proposed plan for the Board.

Mr. Carrier asked for clarification on the request. Mr. Robertson answered that because of the width of the front yard property line, it would be considered an all yard lot based on the I'On Code, which limits lot coverage to 40%.

Mr. Cowden asked if 40 Robert Mills Circle is a pi-shaped lot. Mr. Dodds answered in the negative and stated that it is a rectangular lot that was granted a variance for increased lot coverage. He stated that none of the lots on Robert Mills Circle exceed the 40% lot coverage; several exceed 50% lot coverage.

Mr. Wood asked if the I'On ARB would have to approve the site plan. Mr. Dodds answered in the affirmative. Mr. Wood suggested that a hardship is not shown and suggested that the property is not unreasonably prohibited or restricted. Mr. Dodds answered that it would be unreasonably restricted by applying different standards to the lot that are not applied to surrounding lots. He suggested that this would be considered "spot zoning" in an arbitrary and capricious manner. Mr. Wood asked for the factual basis of the unreasonable restriction. Mr. Dodds answered that it is the strict application of the ordinance unreasonably restricts the use of the property.

Mr. Wolff stated that he is having difficulty with the request and suggested that the lot was purchased knowing that the lot had 40% lot coverage. Mr. Belton suggested that the lot was purchased prior to lot coverage being applied.

Mr. Wood asked about the letter of determination that has been mentioned. Mr. Robertson answered that the letter exists, but is not available for this meeting. He stated that this has been recently addressed with Town Council.

Mr. Dodds stated that until recently, the letter of determination was used for construction in I'On. He stated that based on the change in determination, many of the homes already built in I'On would be considered non-conforming and if significantly damaged, could not be rebuilt. He stated that they are requesting to allow the same lot coverage as has been previously allowed for all lots in I'On. He stated that the need for a predominantly one-story structure provides a hardship. He stated that no other variances are being requested other than being able to apply the 60% lot coverage as has historically been done.

Mr. Belton reviewed the reasons for the request:

- Need mainly one-story structure due to health issues
- Property was purchased with previous determination of allowing 60% lot coverage.
- Allowing additional lot coverage would be consistent with the neighborhood.

Mr. Dodds concurred.

Mr. Belton asked what the neighbor's main concerns were regarding the request. Mr. Bellars stated that the lots on Robert Mills Circle are rear lots because they are along the water. He stated that the main concern is that there is no parking on the property. He suggested that the plan does not show sufficient parking.

Mr. Belton stated that there is a provision for the number of parking spaces that must be provided. He stated that the parking is not under the purview of this Board. He suggested that the plan has not been finalized and would need to be approved by the I'On ARB.

Mr. Robertson clarified that the letter of determination previously mentioned was acknowledged at the February Planning Committee and Town Council meeting. He stated that the letter exists, but a copy is not available at this meeting. He stated that the content of the letter that has been implied has been presented to Town Council and a request submitted to Town Council to change the requirements.

Mr. Wolff asked if the basis of the 60% lot coverage is impervious surface. Mr. Robertson answered that he is not sure if it is only impervious surface or footprint as it would be based on the I'On Code. Ms. O'Connor stated that the lot coverage ratio is based on the buildings, which includes the pool. Mr. Wolff asked of the concrete around the pool would be included. Ms. O'Connor answered in the affirmative.

Mr. Carrier stated that the request is to change the yard type. He stated that the fact that the Zoning Administrator's determination previously allowed 60% coverage should be taken into account.

Mr. Belton suggested that given that a large percentage of the community has been able to build to 60% lot coverage should be a consideration.

▶ *Mr. Cowden moved for approval based on the findings that it is a pie-shaped lot, a similar variance was granted in vicinity, I'On is a unique subdivision with 60% lot coverage allowed for other lots. Mr. Duke seconded the motion. Motion failed on a 3 to 3 vote with Mr. Cowden, Mr. Belton, and Mr. Duke in favor; Mr. Wolff, Mr. Carrier, and Mr. Wood opposed.*

Mr. Robertson reviewed the rules of procedure in the event of a tie vote for the Board as stipulated in the bylaws. He stated that if no final decision is made, the request can be submitted for a new hearing.

Mr. Wood suggested that the hardship test has not been met as it does not unreasonably restrict the property. He suggested that the plan could be changed to meet the lot coverage requirement. He suggested that the proposed plan is a preference and not a need.

Mr. Belton suggested that the need is that a one-story floor plan is being proposed due to health needs. He stated that other lots in the subdivision have previously been able to build to 60% lot coverage.

Mr. Carrier agreed that the hardship has not been met. Mr. Wolff agreed.

Mr. Belton asked if there is any justification on the need for the request. Ms. O'Connor answered that the zoning is not indicated as I'On is in a PD. She stated that previously the zoning was stipulated by Town staff of the setbacks and the

lot coverage of 60%. She stated that previously, Town staff indicated that the lot would have a 60% lot coverage.

Mr. Belton stated that the issue deadlocked and unresolved and the applicant would have an opportunity to return if desired.

L. Case V-18-18, 138 3rd Ave., TMS 514-05-00-104, Appeal from the strict application of §156.224 to allow 9 foot encroachment into tree protection zone. (Revised April 18, 2018. Original agenda used owner's address not subject property address).

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Ms. Heather Wilson reviewed the request with the Board. She distributed a copy of the arborist letter for the Board to review (attachment 7).

There being no comments, Mr. Belton closed public comment.

Mr. Belton asked if the lot has been utilized as much as possible while preserving the trees. Ms. Wilson answered in the affirmative and stated that the house is the minimum 2,700 square feet required by the neighborhood. Mr. Belton noted that the arborist has noted that the plan would be "minimally invasive".

- *Mr. Wolff moved for approval of the request based on the findings included in the staff report, it has met the four criteria and without a variance, the owner would not be able to utilize property, it is an extraordinary property with the number of protected trees, and if approved., the request would not be a detriment to the neighborhood. Mr. Wood seconded the motion. All in favor.*

M. Request for Rehearing, Case V-1-18, 361 Cooper River Drive, TMS 514-0000-406, Appeal from the strict application of Eastport Village Planned Development Ordinance 02069, R-02-03 and §156.007 DEFINITIONS, BUILDING HEIGHT, and §156.102 HEIGHT AND SIZE OF BUILDINGS/STRUCTURES to allow a rooftop pergola above the 80 foot height limit.

N. Case V-1-18, 361 Cooper River Drive, TMS 514-00-00-406, If Rehearing Request is Approved in Item 1, Appeal from the strict application of Eastport Village Planned Development Ordinance 02069, R-02-03 and

§156.007 DEFINITIONS, BUILDING HEIGHT, and §156.102 HEIGHT AND SIZE OF BUILDINGS/STRUCTURES to allow a rooftop pergola above the 80 foot height limit. Correspondence

Mr. Robertson stated that the applicant sent correspondence indicating withdrawal of the request.

O. Case V-12-18, 536 Belle Station, TMS 556-00-00-384, Appeal from the strict application of §156.171 SCHEDULE OF OFF-STREET PARKING SPACE REQUIREMENTS to allow an outdoor patio in a shopping center without providing additional parking spaces.

Mr. Wolff moved for deferral of the request to the next meeting Mr. Duke seconded the motion. All in favor.

4. Final Orders

The Board signed final orders for the following cases:

V-4-18	V-8-18
V-5-18	V-9-18
A-3-17	V-10-18
V-6-18	V-11-18
V-7-18	

There being no further business, the meeting adjourned at 10:04 am.

Submitted by,
L. Lynes
BOZA04302018